

OREGON STATE HOSPITAL

POLICIES AND PROCEDURES

SECTION 6: Patient Care

POLICY: 6.030

SUBJECT: Electronic Device and Internet Access for Patients

POINT PERSON: CHIEF MEDICAL OFFICER

APPROVED: JOHN SWANSON

DATE: DECEMBER 20, 2017

INTERIM ADMINISTRATOR

I. POLICY

- A. Oregon State Hospital (OSH) supports reasonable patient use of cell phones, computers, tablets, gaming devices, (*i.e.*, “electronic devices”) and the internet within parameters established in this policy. OSH also recognizes that in some cases unrestricted and unmonitored electronic device and internet access can create vulnerabilities for patients, health care personnel (HCP), and the public. Therefore, this policy must be read in conjunction with OSH Policy and Procedure 8.044, “Contraband and Prohibited Items,” and OSH Policy and Procedure 7.002 regarding patient access to media.
- B. Patient access to electronic devices and internet must be guided by this and other applicable policies, by the program in which the patient is being provided treatment, and by the interdisciplinary treatment team (IDT). Patient access to these resources is also guided by the patient’s progress in treatment and towards community discharge.
- C. This policy applies to electronic devices designated for patient use. Electronic devices used by a patient must be OSH-approved or OSH-issued. All electronic devices must conform to applicable policies, procedures, laws, and regulations.
- D. All data stored or viewed on devices under this policy is subject to the provisions of OSH Policy and Procedure 7.002 and applicable copyright requirements.
- E. OSH may review and restrict access to electronic devices or internet in cases of device misuse or access to unauthorized media.
 - 1. Any patient-used or patient-owned electronic device may be subject to search at any time.
 - 2. Failure to follow the provisions in the “OSH Internet and Computer Use/Access Contract” or “Cell Phone Contract” (attached), or possession of devices not allowed under this policy may result in search and possible restriction from using the device or data.

- F. HCP may not use state-owned or patient-owned electronic devices that fall under this policy except while assisting a patient.
- G. Exceptions to the provisions of this policy are allowable only with IDT and program director support and as approved by the Superintendent or designee.
- H. A HCP who fails to comply with this policy or related procedures may be subject to disciplinary action, up to and including dismissal.

II. DEFINITIONS

- A. “Electronic device” for the purposes of this policy includes but is not limited to any cellphone, computer, tablet, gaming device, television, smart watch, electronic storage device, portable hotspot, or any similar equipment. In this policy, “electronic device” includes printers.
- B. “Health care personnel (HCP)” for the purposes of this policy means the population of health care workers working in healthcare settings. HCP might include, but is not limited to: physicians, nurses, nursing assistants, therapists, technicians, dental personnel, pharmacists, laboratory personnel, students and volunteers, trainees, contractual staff not employed by the facility, and persons not directly involved in patient care (e.g., clerical, dietary, housekeeping, maintenance).
- C. “OSH-approved electronic device” means an electronic device found appropriate for patient use by the Superintendent or designee.
- D. “OSH-issued electronic device” means an electronic device issued and maintained by OSH or an OSH-approved vendor for use by patients.

III. PROCEDURES

- A. Cell phones may only be capable of sending and receiving voice calls or text messaging, but not of sending or receiving photographs or videos. No camera, internet access, or other function will be allowed.
 - 1. IDT approval is required prior to purchasing or using a cell phone. Cell phones must be purchased and issued through an OSH-approved vendor.
 - 2. Prior to cell phone approval or purchase, each patient must be oriented to and agree to the “OSH Cell Phone Agreement” (see Attachment C).
 - 3. Each patient is responsible for purchasing and maintaining the cell phone and any services, accessories, or minutes. Cell phone minutes may only be procured through cards. No calling plans, individual or otherwise, are allowed for cell phones.
 - 4. Cell phones are considered individual personal property, and may not be shared with other patients or HCP.

- B. Computer and internet use must be in support of, and may not interfere with, treatment at OSH. Unless otherwise specified in this policy, patients may only use state-owned computers designated for patient use.
1. The IDT must consider the general availability of computer and internet access in the program and weigh the clinical need for such access against the inherent risks of such access for each patient.
 - a. Unless otherwise ordered and documented in the patient's medical record, the level of access must be commensurate with that which is generally available in the program.
 - b. Any exception to electronic device access must be reviewed and documented in accordance with provisions for prohibited items in OSH Policy and Procedure 8.044, "Contraband and Prohibited Items".
 2. Prior to use of computer or internet access, each patient must be oriented to and agree to the "OSH Internet and Computer Use/Access Contract" (Attachment B).
 - a. Exception may be made by the Springs Program Executive Team (PET) for a patient who would benefit from using computers or internet, but who is found to lack capacity to complete a contract and who is deemed to pose little, if any, danger with such use.
 - b. If the Springs PET approves the exception, the patient's IDT must complete the contract for the patient.
 3. If a patient violates the "OSH Internet and Computer Use/Access Contract" (Attachment B) or provisions in this policy, the IDT must review the situation and may restrict or deny the patient's access to computers or internet.
 - a. Patient computer or internet restrictions must be included in the treatment care plan, along with goals and interventions to progressively reduce the restrictions.
 - b. Repeated damage to the computers may result in a full restriction from computer access.
 4. Any computer that shows signs of tampering or changing in its functionality will be removed.
 5. A patient must have a unique individual user logins. A patient may not distribute or share their individual user log-in.
 6. Each unit nurse manager must identify a HCP as a computer administrator to create user accounts and administer passwords for computers on that unit.
- C. Gaming devices allowable under this policy may only be used as outlined in the permission grid (Attachment A). Games must adhere to ratings indicated in OSH Policy and Procedure 7.002.

1. Unless otherwise specifically approved in this policy, only gaming devices that do not permit internet access are allowed at OSH.
 - a. For a personal gaming device to be “OSH-approved,” that device must be certified internet/WiFi disabled by a source deemed credible by the Superintendent or designee.
 - b. Applicable supporting documentation must be presented with the request for a gaming device.
3. Repair for OSH-purchased gaming devices will be the responsibility of OSH. Personal gaming device repair or maintenance is the responsibility of the patient.

D. USB storage devices may be used as storage for data only and may not contain software. The USB may only contain data allowable under the OSH “Internet and Computer Use/Access Contract” (see Attachment B) and OSH Policy and Procedure 7.002.

E. Personal routers and portable hotspots are prohibited.

F. Printing capability is dependent upon specific location (Attachment A). Public access printer/copiers will be made available and maintained by OSH. Ink, paper and maintenance of a patient-owned printer is the individual patient’s responsibility.

IV. ATTACHMENTS

Attachment A Electronic Devices Access

Attachment B OSH Internet and Computer Use/Access Contract.

Attachment C OSH Cell Phone Contract

V. REFERENCES

OAR §§ 309-108-0000 — 309-108-0020

Oregon State Hospital Policy and Procedure Manual. (2014, May). *Media Access for Patients*, 7.002.

Oregon State Hospital Policy and Procedure Manual. *Patient property and valuables: Handling and storage*, 8.037.

Vocational and educational services department internet use agreement [Vocational and Educational Services form].

OSH POLICY 6.030, "ELECTRONIC DEVICE AND INTERNET ACCESS FOR PATIENTS"**ATTACHMENT A Electronic Device Access****PAGE 1 of 1**

Location	Cell Phone	Computers	Gaming Devices	Printers
Harbors Building	No cell phones	No computers	No devices	No printers
Archways	No cell phones	No computers	Unit/ public OSH-issued devices	No printers
Pathways	No cell phones	1 public OSH-issued computer per unit	Unit/ public OSH-issued devices	Off-unit printers
Springs	OSH-approved cell phones	1 public OSH-issued computer	Unit/ public OSH-issued devices	On-unit printer
Crossroads	OSH-approved cell phones	3 public OSH-issued computers	Unit/ public OSH-issued devices	Off-unit printer
Bridges	OSH-approved cell phones	1 OSH-issued computer per bedroom	OSH-approved devices	IDT-approved personal printers
Junction City	OSH-approved cell phones	3 public OSH-issued computers	Unit/ public OSH-issued devices or IDT-approved devices	Off-unit printers

OSH Internet and Computer Use/Access Contract

☐ Patient-Access
(OSH Filtered Computer) ☐ Computer/Internet
(Education/Vocational) ☐ Personal Computer

Oregon State Hospital (OSH) supports patients' reasonable use of computers and the Internet. OSH also recognizes that in some cases, unrestricted and unmonitored computer and Internet access can create vulnerabilities for the patients, staff, and the public.

Before using the computer and/or Internet you must agree to abide by the following rules. Your signature and date on this form indicates your agreement to abide by the following expectations:

I agree to not use computers and/or the Internet to:

1. Transmit offensive, threatening, harassing, abusive, or defaming language and/or images.
2. Conduct business or commercial enterprise, engage in commercial activity, or engage in the sale or promotion of any illegal substance.
3. Engage in any gambling, bets, or trading.
4. View, transmit, or download pornographic materials.
5. Violate intellectual property rights by making unauthorized copies of copyrighted, licensed, or otherwise controlled software or data residing on the Internet.
6. Breach copyright and license policies for software (games and programs).
7. Intentionally transmit worms, viruses, or other harmful programs.
8. Access any unauthorized computers, networks, or information systems.
9. "Piggyback" or obtain Internet services off of unauthorized networks.
10. Install software except as permitted for cottage residents.
11. Intentionally alter or damage computer hardware, software, or settings.
12. Invade the privacy of others – contacting people against their wishes.
13. Engage in any illegal or prohibited activity including activity prescribed by specific court order.

I also agree to respect other clients by:

1. Respecting posted computer time limits and sign-in procedures as applicable.
2. Confining computer sounds to headphones at all hours of the day and to abide by any unit curfews.
3. Not keeping any personal information of other persons, without consent, in either stationary or portable storage devices, including, but not limited to, photos, addresses, recordings, patient names and/or numbers.

CONFIDENTIAL: This information has been disclosed to you from records where confidentiality is protected by State Law (ORS 179.505) and Federal Law (45CFR, Part 164). You are prohibited from making further disclosure without specific written consent of the persons or as otherwise permitted by law.

ADDRESSOGRAPH

File: **Legal**
Thin: **Do Not Thin**
Form #: **OHA 76042 MR1 – 08/2011**

- Violations of the above rules or of OSH Patient Internet Policy 6.030 will prompt an IDT review and will result in the loss or restriction of Internet and/or computer privileges.

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OSH Cell Phone Agreement

Patient Name: _____ IDT Approval: _____

Unit/Cottage: _____ Date: _____

Cell phones are a privilege, not a right. Failure to abide by the guidelines for cell phone use may result in the suspension or loss of your cell phone privilege.

1. Patients must obtain IDT authorization for the cell phone prior to obtaining the cell phone.
2. Cell phones will be purchased through OSH approved vendors only. Cell phones must only be capable of sending and receiving voice and text. No camera, internet access or other function will be allowed.
3. Cell phones must be minutes-style only through use of minutes cards. No calling plans, individual or otherwise are allowed for the phones.
4. Cell phones are not to be taken to the treatment mall. No cell phones on any staff supervised on- or off-grounds activities, unless there is prior approval, on a case-by-case basis.
5. Phones must be on **low volume or vibrate-only at all times**, to reduce noise and disruptions.
6. Cell phone users will be considerate of hours of use, volume of conversation and location of use to minimize possible disruption to other patients. Patients responsible for consistent disruptions with their cell phone use may result in cell phone privilege restrictions, up to and including withdrawal of the privilege.
7. Any reports of telephone use that is harassing, intimidating, illegal, or otherwise considered inappropriate, will result in the immediate suspension of your cell phone privilege, up to and including complete removal of your cell phone.
8. In the event of a clinical hold, it is at the discretion of the IDT whether cell phone privileges are suspended.
9. Your IDT may require you to submit your phone for a review of calls and texts; this may happen randomly, and as needed.
10. All cell phones will be recorded on the patient's property sheets along with the corresponding phone identification, serial number and phone number.
11. Cell phones are the responsibility of their owner. Owner responsibility includes all financial responsibility for the phone, accessories, or services. Loaning a cell phone, selling minutes to peers, or profiting from phone use may result in the loss of the cell phone privilege for those involved.

I have read and agree to the above requirements for my personal cell phone.

Patient Signature: _____ Date: _____